

Line 11

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA**

RALPH JACKSON,

Plaintiff,

v.

COUNTY OF SANTA CLARA; and DOES 1-25,

Defendants.

Case No. 23CV412192

**ORDER SUSTAINING DEMURRER TO
SECOND AMENDED COMPLAINT**

Defendant County of Santa Clara’s (“County”) demurrer to plaintiff Ralph Jackson’s Second Amended Complaint (“SAC”) came on for hearing before the Court on March 25, 2025. Pursuant to California Rule of Court 3.1308, the Court issued its tentative ruling on March 24, 2025.

I. Alleged Facts

According to the SAC, Plaintiff is an African American who suffers from a disability within the meaning of the Fair Employment and Housing Act (“FEHA”). (SAC, ¶ 8.) Beginning in 2005, Plaintiff worked for the County’s Probation Department at James Ranch and wrote reports, had regular interactions with the public and court system through drafting and preparing progress reports, until he was forced to resign in October 2021. (SAC, ¶ 9.) In April 2020, he requested accommodations to work from home or to be transferred to position that would allow him to work from home or stay in his current position and “avoid or limit in person contact” as an accommodation for his disability and being in the high-risk category for COVID-19. (SAC, ¶¶ 11-

12.) Despite Plaintiff providing the County “with notes from his medical doctor regarding the requested accommodations” the County repeatedly refused to accommodate Plaintiff’s request or to engage, in good faith, in the interactive process. (SAC, ¶¶ 11-12, 19.)

Plaintiff alleges the County initially offered to compensate him with paid administrative leave but reneged and offered him an ultimatum to return working onsite without accommodations or to use his leave banks and benefits. (SAC, ¶¶ 15, 17.) In or around April/May 2020, Plaintiff complained about the County’s “deceptive business practices” and requested a reimbursement for his “depleted benefits,” to which his female manager replied, “if you all thought like you, no one would come to work.” (SAC, ¶ 16.) Plaintiff alleges this “racist” comment and “trope” was directed to him, and other African American employees. (*Ibid.*)

On September 28, 2020, the County changed Plaintiff’s status to “Health Leave” in retaliation for his requests for accommodations. (SAC, ¶ 21.) The County also stopped paying for Plaintiff’s insurance benefits. (*Ibid.*) The County refused to accommodate him and forced him to go on leave with no benefits, until he had no option but to resign in October 2021. (SAC, ¶¶ 22, 32.)

Plaintiff initiated this action on February 27, 2023, asserting: (1) disability discrimination; (2) failure to accommodate; (3) failure to engage in interactive process; (4) race and sex discrimination; (5) retaliation; and (6) wrongful termination in violation of public policy. On October 27, 2023, the Court issued an order sustaining the County’s demurrer with leave to amend all claims except the wrongful termination claim, which Plaintiff agreed to dismiss, but overruled the County’s demurrer on uncertainty grounds. On November 27, 2023, Plaintiff filed his FAC, asserting: (1) disability discrimination; (2) failure to accommodate; (3) failure to engage in interactive process; (4) race and sex discrimination; and (5) retaliation. This Court issued an order sustaining the County’s demurrer on all five causes of action with leave to amend. (See Court Order Case No. 23CV412192 entitled *Ralph Jackson vs. County of Santa Clara; and DOES 1-25*, filed on April 12, 2024.)

On April 30, 2024, Plaintiff filed the operative pleading, the SAC, alleging the same causes

1 of action. On December 6, 2024, the County filed its demurrer to the SAC on the ground¹ that it
2 fails to state sufficient facts (Code Civ. Proc. § 430.10, subd. (e).) Plaintiff opposes the demurrer.
3 The County filed its reply on March 18, 2025.

4 **II. The County's Request for Judicial Notice ("RFJN")**

5 The County requests the Court to take judicial notice of "the meaning of the term
6 'immunocompromised,' as informed by[:]"

7 Yale Medicine website, What Does It Mean To Be 'Immunocompromised'?
8 <https://www.yalemedicine.org/news/what-does-immunocompromised-mean>

9 The cited document is a Yale Medicine webpage purporting to define the term
10 "immunocompromised." (County's RFJN ISO County's Demurrer to Plaintiff's SAC, p. 2; Declaration
11 of Nathan A. Greenblatt in Support of Demurrer to Plaintiff's SAC ("Greenblatt Decl."), Exh. 2.) The
12 County argues the Court may take judicial notice of "the true signification of all English words and
13 phrases, pursuant to Evidence Code section 451, subdivision (e)." (County RFJN, p. 2:16-
14 18.) Plaintiff argues the website document is improper extrinsic evidence and lacks foundation.

15 The request for judicial notice of this document is GRANTED. The definition of the word
16 "immunocompromised" is relevant to the County's demurrer to Plaintiff's disability discrimination
17 claim. When interpreting a statute, courts "appropriately refer to the dictionary definition" to
18 ascertain the ordinary, usual meaning of a word. (*Wasatch Property Management v. Degrade* (2005)
19 35 Cal.4th 1111, 1121–1122; see also *Golden Sec. Thrift & Loan Ass'n v. First Am. Title Ins. Co.* (1997)
20 53 Cal.App.4th 250, 256 [taking judicial notice of various dictionary definitions].) Evidence Code
21 section 451, subdivision (e) also requires judicial notice be taken of "[t]he true signification of all
22 English words and phrases." (*Sierra Club v. Superior Court* (2013) 57 Cal.4th 157, 171; *California*
23 *Public Records Research, Inc. v. County of Stanislaus* (2016) 246 Cal.App.4th 1432, 1445-1446 ["even
24

25
26
27 ¹ While the notice of demurrer states that the County is demurring on uncertainty grounds, the memorandum of points
28 and authorities in support of the demurrer does not contain an uncertainty argument. (See Defendant County of Santa Clara's Notice of Demurrer and Demurrer to Plaintiff's SAC, p. 1:19-24.) Consequently, this Court will solely address the County's failure to state a claim argument.

1 if the trial court considered and relied on the dictionary definitions submitted by County, that
2 reliance was not error. When interpreting a statute, courts “appropriately refer to the dictionary
3 definition” to ascertain the ordinary, usual meaning of a word. (*Wasatch Property Management v.*
4 *Degrade* (2005) 35 Cal.4th 1111, 1121–1122.) Moreover, mandatory language in Evidence Code
5 section 451, subdivision (e) requires judicial notice be taken of “[t]he true signification of all English
6 words and phrases.” (*Sierra Club v. Superior Court* (2013) 57 Cal.4th 157, 171 [[Supreme Court took
7 judicial notice of dictionary definition of “program”]; *Golden Security Thrift & Loan Assn. v. First*
8 *American Title Ins. Co.* (1997) 53 Cal.App.4th 250, 256 [“true signification” of a word is best derived
9 from dictionary definitions].)

10 Defendant’s request for judicial notice of Plaintiff’s Complaint of Discrimination under FEHA
11 is GRANTED. (Evid. Code, § 452, subd. (c) [official acts of public agencies].) “The court may
12 take judicial notice of the filing and contents of a government claim, but not the truth of the
13 claim.” (*Gong v. City of Rosemead* (2014) 226 Cal.App.4th 363, 368, fn. 1; *Fowler v. Howell* (1996) 42
14 Cal.App.4th 1746, 1752-1753 [“Evidence Code section 452, subdivision (c), permits the trial court
15 to take judicial notice of the records and files of a state administrative board.”].) In
16 taking judicial notice of these documents, a court may take notice of their existence only and not the
17 truth of the statements contained within. (*Fremont Indem. Co. v. Fremont General Corp.* (2007) 148
18 Cal.App.4th 97, 113-114.)

19 **III. Whether the Demurrer Was Brought in Bad Faith**

20 Plaintiff argues the parties’ pre-demurrer meet and confer was not conducted in good faith.
21 (Opp., p. 2:15-24.) Plaintiff asserts the County offered to “not pursue a Demurrer if Plaintiff agreed
22 to withdraw the disability-related causes of action,” and that “leveraging a demurrer” in this manner
23 is improper. (*Ibid.*) There is no factual evidence cited in Plaintiff’s counsel’s declaration to support
24 this claim. (Declaration of Vincent Tong in Opp. (“Tong Decl.”), ¶ 5, Exh. A – Meet and Confer
25 Correspondence.) The email exchange between Mr. Tong and County counsel does not indicate that
26 the County’s counsel conceded to Mr. Tong’s assertion that “leveraging a third demurrer in an
27 attempt to persuade Plaintiff to waive substantive rights is not proper,” but instead simply replied
28 with “I will try calling around 2 pm.” (See Tong Decl., ¶ 5, Exh. A, pp. 1, 3.) Thus, Plaintiff’s argument

1 lacks merit. The County also explained that during a meet and confer call, County counsel suggested
2 “a possible compromise to resolve the demurrer that involved Plaintiff dismissing any of his causes
3 of action.” (Reply in Support of Defendant County of Santa Clara’s Demurrer to Plaintiff’s SAC
4 (“Reply”), p. 2:20-28; Declaration of Nathan Greenblatt in Reply (“Greenblatt Reply Decl.”), ¶ 2.) This
5 is the type of communication expected during meet and confer and does not demonstrate bad faith.
6 (*Stewart v. Colonial Western Agency, Inc.* (2001) 87 Cal.App.4th 1006, 1016 [meet and confer rule is
7 designed to encourage the parties to work out their differences informally so as to avoid the
8 necessity for a formal order].) The Court will thus turn to the substance of the demurrer.

9 **IV. Legal Standard**

10 “The party against whom a complaint or cross-complaint has been filed may object, by
11 demurrer or answer as provided in [Code of Civil Procedure s]ection 430.30, to the pleading on any
12 one or more of the following grounds: . . . (e) The pleading does not state facts sufficient to constitute
13 a cause of action.” (Code Civ. Proc., § 430.10, subd. (e).) A demurrer may be utilized by “[t]he party
14 against whom a complaint [] has been filed” to object to the legal sufficiency of the pleading as a
15 whole, or to any “cause of action” stated therein, on one or more of the grounds enumerated by
16 statute. (Code Civ. Proc., §§ 430.10, 430.50, subd. (a).)

17 The court treats a demurrer “as admitting all material facts properly pleaded, but not
18 contentions, deductions or conclusions of fact or law.” (*Piccinini v. Cal. Emergency Management*
19 *Agency* (2014) 226 Cal.App.4th 685, 688, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) “A
20 demurrer tests only the legal sufficiency of the pleading. It admits the truth of all material factual
21 allegations in the complaint; the question of plaintiff’s ability to prove these allegations, or the
22 possible difficulty in making such proof does not concern the reviewing court.” (*Committee on*
23 *Children’s Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 213-214.) In ruling on a
24 demurrer, courts may consider matters subject to judicial notice.² (*Scott v. JPMorgan Chase Bank,*
25 *N.A.* (2013) 214 Cal.App.4th 743, 751.) Evidentiary facts found in exhibits attached to a complaint
26 can be considered on demurrer. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.)

27
28 ² On its own motion, the Court takes judicial notice of both the Complaint and FAC. (Evid. Code, § 452, subd. (d).)

V. Analysis

A. First Cause of Action: Disability Discrimination

Under FEHA, “it is an unlawful employment practice... for an employer because of... disability...to refuse to hire or employ the person or to refuse to select the person for a training program leading to employment, or to bar or to discharge the person from employment or from a training program leading to employment, or to discriminate against the person in compensation or in terms, conditions, or privileges of employment.” (Gov. Code, 12940, subd. (a).) “The specific elements of prima facie case varies depending on the particular facts. Generally, the plaintiff must provide evidence that (1) he was member of protected class, (2) he was qualified for the position he sought or was performing competently in the position he held, (3) he suffered an adverse employment action, such as termination, demotion, denial of an available job, and (4) some other circumstances suggest discriminatory motive.” (*Guz v. Bechtel Nat. Inc.* (2000) 24 Cal.4th 317, 355 (*Guz*) [internal citations omitted].)³

Under the FEHA, a physical disability includes having a physiological disease, disorder, condition, cosmetic disfigurement, or anatomical loss that does both of the following: (1) affects one or more of the neurological, immunological, musculoskeletal, special sense organs, respiratory, cardiovascular, reproductive, digestive, genitourinary, hemic, lymphatic, skin, and endocrine systems; and (2) limits a major life activity. (Gov. Code, § 12926, subd. (m)(1).) A disability “limits” a major life activity if it makes the activity difficult. (Gov. Code, § 12926, subd. (m)(1)(B).) A “major life activity” is construed broadly to include physical, mental, and social activities, including working. (Gov. Code, § 12926, subd. (m)(1)(B)(iii).) Whether a major life activity is limited “shall be determined without regard to mitigating measures such as medications, assistive devices, prosthetics, or reasonable accommodations, unless the *mitigating measure itself limits a major life activity*.” (Gov. Code, § 12926, subd. (m)(1)(B)(i), italics added.)

FEHA contains detailed definitions for various disabilities. (Gov. Code., § 12926.) “Mental disability’ includes . . . having any mental or psychological disorder or condition, such as intellectual

³ Some courts omit or modify the fourth element from *Guz*, *supra*.

1 disability, organic brain syndrome, emotional or mental illness, or specific learning disabilities, that
2 limits a major life activity.” (Gov. Code, § 12926, subd. (j)(1).) A “physical disability” includes
3 “[h]aving any physiological disease, disorder, condition, cosmetic disfigurement, or anatomical loss
4 that” affects one or more body systems and limits a major life activity. (Gov. Code, § 12926, subd.
5 (m)(1)(B).) FEHA requires that the physical disability be an “active impairment” that presently
6 makes engagement in a “major life activity” difficult, not that it hypothetically could. (Gov. Code, §
7 12926, subd. (m)(1)(B)(ii) [“A physiological disease, disorder, condition, cosmetic disfigurement,
8 or anatomical loss limits a major life activity if it makes the achievement of the major life activity
9 difficult”].)⁴

10 Plaintiff alleges he had a disability, a record of disability, and/or was perceived as or treated
11 as having a disability by the County. (SAC, ¶ 39.) And that he “notified [the County] that he suffered
12 from chronic health conditions related to his metabolic disorder, sleep disorder, high blood
13 pressure, was immunocompromised and was in the increased risk category for suffering severe
14 effects of COVID-19 if contracted, including decreased lung functions and death.” (SAC, ¶ 11.)

15 The County again maintains Plaintiff’s alleged susceptibility to “suffering severe effects of
16 COVID-19 if contracted, including decreased lung functions and death” is insufficient to
17 demonstrate a qualified disability under FEHA and argues that Plaintiff does not allege he
18 contracted COVID-19, but instead, presents a hypothetical that if he did, he would suffer severe
19 effects. County further contends Plaintiff fails to allege facts demonstrating how any of the above-
20 mentioned conditions limited his ability to work. For example, Plaintiff does not identify his “health
21 conditions related to his metabolic disorder,” does not explain how those unidentified health
22 conditions limited his ability to work and does not explain how his “sleep disorder” or high blood
23 pressure limited his ability to work. (*Ibid.*) Defendant further argues that “[b]eing
24

25
26 ⁴ Although the Court previously admonished the County that cases involving the standard for establishing
27 a disability under the American Disabilities Act are unhelpful because they involve a different standard for
28 what constitutes a disability, the County again relies on such cases. The County’s repeated discussion of
“[Department of Fair Employment and Housing] Employment Information on COVID-19” is equally
unhelpful given that the document was published after the relevant events in this matter.

1 immunocompromised does not mean a person is disabled.” (Dem.MPA, p. 9:8-13; see also *Hodges*
2 *v. Cedars-Sinai Medical Center* (2023) 91 Cal.App.5th 894, 914 (*Hodges*) [finding that
3 immunocompromised plaintiff was not disabled].) In support, the County relies on multiple federal
4 district court opinions rejecting FEHA disability discrimination claims in circumstances where
5 merely being immunocompromised without alleging what major life activities are limited by these
6 conditions. The Court finds the *Hodges* case unhelpful here given that it was at the summary
7 judgment stage and the pleading standards are much higher than at the demurrer stage.

8 Plaintiff’s cited authority does not remedy these issues. *Soria v. Univision Radio Los Angeles,*
9 *Inc.* (2016) 5 Cal.App.5th 570, 588, 596-597 (*Soria*) involved a plaintiff with a debilitating stomach
10 tumor resulting in missed work due to medical appointments related to the tumor. (*Id.*, at p. 588.)
11 Here, the SAC is devoid of any allegations stating that Plaintiff’s health conditions required him to
12 miss work to obtain treatment. (Reply, p. 4:23-24.) *Claudio v. Regents of the University of California*
13 (2005) 134 Cal.App.4th 224 (*Claudio*), is also misplaced given that the disability discrimination
14 claim was addressed on summary judgment, and the court did not address whether Plaintiff’s
15 physical impairment qualified as a FEHA disability. (*Claudio*, 134 Cal.App.4th 224.)

16 *Brown v. Los Angeles Unified School Dist.* (2021) 60 Cal.App.5th 1092 (*Brown*) does not
17 bolster Plaintiff’s claim that he has a cognizable FEHA disability either. In *Brown*, the plaintiff
18 alleged her doctor diagnosed her with “electromagnetic hypersensitivity (EHS), also referred to as
19 ‘microwave sickness.’” (*Brown, supra*, at p. 1099.) The plaintiff further alleged that “[f]ollowing
20 activation of [her employer’s] new Wi-Fi system on April 23, 2015, Brown began to experience
21 chronic pain, headaches, nausea, itching, burning sensations on her skin, ear issues, shortness of
22 breath, inflammation, heart palpitations, respiratory complications, foggy headedness, and
23 fatigue.” (*Ibid.*) Thus, in *Brown*, the plaintiff did not merely allege that she had a health condition
24 that could potentially be exacerbated if she returned to work, but instead alleged that “she had a
25 specific, diagnosed health condition—microwave sickness—that had actually caused serious,
26 debilitating effects at work.” (Reply, pp. 5:26-28; 6:1.)

27 Here, Plaintiff’s SAC includes a laundry list of disorders, without more, but fails to allege
28 how these disorders affected his work performance compared to a normal baseline. (See SAC, ¶

1 11 ["...[Plaintiff] suffered from chronic health conditions related to his metabolic disorder, sleep
2 disorder, high blood pressure, was immunocompromised and was in the increased risk category
3 for suffering severe effects of COVID-19...].) As a result, the Court again cannot determine whether
4 Plaintiff's disability falls under the FEHA definition and whether he is a member of a protected class
5 who suffered a disability. (See *Lopez v. Southern California Rapid Transit District* (1985) 40 Cal.3d
6 780, 795 [the general rule is that statutory causes of action must be pleaded with particularity];
7 *Covenant Care, Inc. v. Superior Court* (2004) 32 Cal.4th 771, 790 [same] (*Covenant Care*).)

8 As to adverse employment action, Plaintiff alleges, he was "terminated in material part
9 because of his physical disability," but fails to allege any facts in support of that allegation. (SAC, ¶¶
10 42, 54.) Contrary to Plaintiff's argument, SAC paragraphs 31 and 32, say nothing about
11 discriminatory intent based on a disability, but instead reference race and gender. (See, e.g., SAC, ¶
12 31 ["DEFENDANTS continued to deny PLAINTIFF's requests to work remotely...while offering
13 these available positions to individuals who were not African American and not male].)

14 Further, Plaintiff's allegation involving County manager Jill Ugalde's statement - "[I]f you all
15 thought like you, no one would come to work" - is not only labelled a "racist comment," but also
16 involved his request for "depleted benefits" not his alleged disability. (SAC ¶ 16.) This allegation
17 fails to allege discrimination on the basis of disability. Plaintiff accordingly fails to allege facts that
18 suggest discriminatory motive for his termination. (*Guz*, 24 Cal.4th at p. 355.)

19 Plaintiff was given two opportunities for leave to amend per this Court's previous two
20 orders. (See *City of Stockton v. Super. Ct.* (2007) 42 Cal.4th 730, 747 (*Stockton*) [if a plaintiff has not
21 had an opportunity to amend the complaint in response to a demurrer, leave to amend is liberally
22 allowed as a matter of fairness].) Plaintiff attaches a proposed Third Amended Complaint ("TAC")
23 to his declaration. (See Declaration of Vincent Tong, Esq. in Support of Opposition to Defendant
24 Santa Clara County's Demurrer to Plaintiff Ralph Jackson's First Amended Complaint, ¶ 6, Exh. B -
25 Proposed Third Amended Complaint.) While the proposed TAC is not the subject of this demurrer,
26 upon review, it does not appear that the TAC would solve the issues identified here. The TAC even
27 further conflates Plaintiff's allegations regarding alleged disabilities and alleged racial
28 discrimination. By way of example only, after numerous amendments, other than the specific

1 comments attributed to the County manager, it is not clear (a) whether Plaintiff claims he was
2 discriminated against based on race or disability (or both), (b) if disability, what disability and how
3 the disability led to an adverse employment action, (c) if racial discrimination, what adverse
4 employment action allegedly flowed from that racial discrimination, (d) what role the no
5 confidence vote could have had, if any, in the County's decision not to let Plaintiff work from home
6 given the chronology, (d) what really lead Plaintiff to resign, or (e) if Plaintiff's resignation was
7 really a result of any of the above.

8 Accordingly, the County's demurrer to the first cause of action is SUSTAINED WITHOUT
9 LEAVE TO AMEND.

10 **B. Second Cause of Action: Failure to Accommodate**

11 It is an unlawful employment practice, "[f]or an employer... to fail to make reasonable
12 accommodation for the known physical or mental disability of an applicant or employee." (Gov.
13 Code, § 12490, subd. (m).) In addition, to a general prohibition against unlawful employment
14 discrimination based on disability, FEHA provides an independent cause of action for an employer's
15 failure to provide a reasonable accommodation for an applicant's or employee's known disability.
16 (Gov. Code, § 12940, subds. (a) & (m).)

17 "The elements of a failure to accommodate claim are (1) the plaintiff has a disability under
18 the FEHA; (2) the plaintiff is qualified to perform the essential functions of the position; and (3) the
19 employer failed to reasonably accommodate the plaintiff's disability." (*Scotch v. Art Institute of*
20 *California* (2009) 173 Cal.App.4th 986, 1009-1010 (*Scotch*).) A "reasonable accommodation" is any
21 "modification or adjustment to the workplace that enables the employee to perform the essential
22 functions of the job held or desired. (*Id.*, at p. 1010.)

23 Reasonable accommodation may include "[j]ob restricting, part-time or modified work
24 schedules, reassignment to a vacant position...and other similar accommodations for individuals
25 with disabilities. (Gov. Code, § 12926, subd. (p).) "FEHA does not obligate an employer to choose
26 the best accommodation or the specific accommodation a disabled employee or applicant seeks. It
27 only requires that the accommodation chosen be 'reasonable.'" (*Raine v. City of Burbank* (2006) 135
28 Cal.App.4th 1215, 1222 (*Raine*).) Plaintiff must show he or she suffers from a disability covered by

1 FEHA and that he or she is a qualified individual. (*Jensen v. Wells Fargo Bank* (2000) 85 Cal.App.4th
2 245, 256 (*Jensen*).) To show that a plaintiff is a qualified individual, plaintiff must prove that he or
3 she can perform the essential functions of the position to which reassignment is sought, rather than
4 the essential functions of the existing position. (*Ibid.*)

5 As stated above, the SAC does not allege facts sufficient to support a physical disability under
6 FEHA. Additionally, while Plaintiff alleges his prior work experience in “procedure and policy”
7 writing for the Probation Department to support his claim that he was qualified for other work (SAC,
8 ¶ 13), Plaintiff does not sufficiently plead that the County failed to provide a reasonable
9 accommodation. (See *Raine, supra*, 135 Cal.App.4th at p. 1222.) Plaintiff concedes in his prior
10 complaints that the County granted Plaintiff a leave of absence from work and Plaintiff repeatedly
11 extended that leave. (See Complaint, ¶ 20.) The standard is whether the accommodation was
12 “reasonable,” not whether it was the accommodation Plaintiff chose. (*Jensen, supra*, 85 Cal.App.4th
13 at p. 263 [“Holding a job open for a disabled employee who needs time to recuperate or heal is in
14 itself a form of reasonable accommodation and may be all that is required where it appears likely
15 that the employee will be able to return to an existing position at some time in the foreseeable
16 future”].) Thus, the demurrer to the second cause of action is SUSTAINED WITHOUT LEAVE TO
17 AMEND. (See *Stockton, supra*, 42 Cal.4th at p. 747.)

18 C. Third Cause of Action-Failure to Engage in the Interactive Process

19 The FEHA imposes a duty on the employer “to engage in a timely, good faith, interactive
20 process with the employee or applicant to determine effective reasonable accommodations, if any,
21 in response to a request for reasonable accommodation by an employee or applicant with a known
22 physical or mental disability or known medical condition.” (Gov. Code, § 12940, subd. (n).) “An
23 employer’s failure to engage in this process is a separate FEHA violation.” (*Wilson v. County of*
24 *Orange* (2009) 169 Cal.App.4th 1185, 1193.)

25 “The interactive process imposes burdens on both the employer and employee. The
26 employee must initiate the process unless the disability and resulting limitations are
27 obvious. ‘Where the disability, resulting limitations, and necessary reasonable accommodations,
28 are not open, obvious, and apparent to the employer, ... the initial burden rests primarily upon the

1 employee ... to specifically identify the disability and resulting limitations, and to suggest the
2 reasonable accommodations.” (*Scotch, supra*, 173 Cal.App.4th at p. 1013 [citations
3 omitted].) “Although it is the employee’s burden to initiate the process, no magic words are
4 necessary, and the obligation arises once the employer becomes aware of the need to consider an
5 accommodation.” (*Ibid.*) “Once the interactive process is initiated, the employer’s obligation to
6 engage in the process in good faith is continuous.” (*Ibid.*)

7 As stated above, the SAC does not allege facts sufficient to support a physical disability under
8 FEHA. Additionally, the SAC, like Plaintiff’s prior complaints, contain conclusory allegations
9 regarding the County’s failure to engage in the interactive process. Specifically, Plaintiff asserts the
10 County “refused to engage in good faith timely interactive process to determine reasonable
11 accommodations” is a threadbare allegation which restates the applicable statutory language under
12 Government Code section 12950. (SAC ¶¶ 12, 14, 18, 22-23, 32, 90; see also *Brown v. Ralphs Grocery*
13 *Co.* (2018) 28 Cal.App.5th 824, 837 [“bare allegations were insufficient because they simply
14 paraphrased the allegedly violated statutes.”].) Plaintiff argues that “even after Plaintiff provided all
15 the relevant information for accommodation, Defendant did not evaluate his qualifications or skills
16 or request further information about eligible positions, or engage with Plaintiff to determine
17 whether to place him in the contact tracer or similar positions that would accommodate Plaintiff. In
18 fact, Defendant never reached out to Plaintiff at all about available jobs,” but Plaintiff’s SAC is devoid
19 of these allegations.

20 Thus, the demurrer to the third cause of action is SUSTAINED WITHOUT LEAVE TO AMEND.

21 **D. Fourth Cause of Action: Race and Sex Discrimination**

22 To state a claim under this FEHA section, a plaintiff must show that (1) he was a member of
23 a protected class, (2) he was qualified for the position he sought or was performing competently in
24 the position he held, (3) he suffered an adverse employment action, such as termination, demotion,
25 denial of an available job, and (4) some other circumstances suggest discriminatory motive. (*Guz,*
26 *supra*, 24 Cal.4th at p. 355.)

27 Adverse employment actions must “materially affect the terms, conditions, or privileges of
28 employment to be actionable.” (*Whitehall v. County of San Bernardino* (2017) 17 Cal.App.5th 352,

366-367.) “The ‘materiality’ test encompasses not only ultimate employment decisions, but ‘also the entire spectrum of employment actions that are reasonably likely to be adversely and materially affect an employee’s job performance or opportunity for advancement in his or her career.’” (*Patten v. Grant Joint Union High School Dist.* (2005) 134 Cal.App.4th 1378, 1387.)

An employee’s termination can be actual or constructive. “Constructive discharge occurs when the employer’s conduct effectively forces an employee to resign. Although the employee may say ‘I quit,’ the employment relationship is actually severed involuntarily by the employer’s acts, against the employee’s will. As a result, a constructive discharge is legally regarded as a firing rather than a resignation.” (*Turner v. Anheuser-Busch, Inc.* (1994) 7 Cal.4th 1238, 1244-1245.)

Plaintiff is an African American man. (Complaint, ¶ 52.) He now alleges that the County’s senior probation manager, Ugalde, a Caucasian female, “was the decision maker and/or participated in the decision to deny [Plaintiff’s] requested reasonable accommodations.” (SAC, ¶ 24.) He further alleges that during a meeting with Plaintiff, Ugalde stated “if you all thought like you, no one would come to work.” (SAC, ¶ 16.) Plaintiff conclusorily alleges this standalone comment made by Ugalde was a “racist trope” and made shortly after he requested a reimbursement of his depleted benefits. (*Ibid.*) However, Ugalde’s “passing comments,” albeit insensitive, do not demonstrate a clear discriminatory motive on the basis of Plaintiff’s race and gender.

As for Plaintiff’s former supervisor, Joel Grabschied, the Court previously ruled Plaintiff failed to connect his alleged constructive termination to the mistreatment by Grabschied, and there are no allegations in the SAC that would change its prior ruling. Plaintiff’s opposition discussion regarding Ugalde’s attempt to dissuade Plaintiff from filing a formal action against Grabschied, and then subsequently pressuring him to participate in the County’s investigation fails to demonstrate how these actions are discriminatory on the basis of Plaintiff’s race or sex. (See SAC, ¶¶ 28, 30, 84-85; see also Opp., p. 12:16-28.)

Consequently, the County’s demurrer to the fourth cause of action is SUSTAINED WITHOUT LEAVE TO AMEND.

E. Fifth Cause of Action: Retaliation

Government Code section [2940, subdivision (h) provides:

1 For any employer, labor organization, employment agency, or person to
2 discharge, expel, or otherwise discriminate against any person because the
3 person has opposed any practices forbidden under this part or because the
4 person has filed complaint, testified, or assisted in any proceeding under this
5 part.

(Gov. Code, 12940 (h).)

6 “In order to establish a prima facie case of retaliation under the FEHA, a plaintiff must show
7 (1) they engaged in a “protected activity”; (2) the employer subjected the employee to an adverse
8 employment action; and (3) a causal link existed between the protected activity and the employer’s
9 action.” (*Yanowitz v. L’Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1042.) “Employees need not explicitly
10 and directly inform their employer that they believe the employer’s conduct was discriminatory or
11 otherwise forbidden by the FEHA.” (*Castro-Ramirez v. Dependable Highway Express, Inc.* (2016) 2
12 Cal.App.5th 1028, 1046.)

13 Plaintiff alleges that after he requested reasonable accommodations and opposed and
14 protested the discriminatory conduct of the County managers and supervisors, the County
15 retaliated against him by denying his request for accommodations, while other employees’ requests
16 were granted, pressuring him to return to work onsite without accommodations, refusing to grant
17 him options regarding alternate positions, terminating his health benefits, and placing him on an
18 involuntary leave of absence. (SAC, ¶¶ 85, 90.) As the Court stated above, it is unclear whether
19 Grabschied had a role in Plaintiff’s alleged termination after Plaintiff made complaints at the vote of
20 no confidence meeting. And although now, the SAC includes facts regarding the alleged harassment
21 from both the County’s probation supervisor and manager, it still fails to allege facts to support a
22 causal connection between his protected activity and the County’s ultimate actions. Specifically,
23 Plaintiff alleges that Ugalde, “a Caucasian female,” “participated in the decision to deny [his]
24 requested reasonable accommodations,” after she alternately attempted to dissuade, and then
25 persuade, him to participate in the complaint process against Grabschied. (See SAC ¶¶ 28, 30, 84-
26 85.) However, Plaintiff fails to link anything Ugalde allegedly said or did to the Grabschied
27 investigation.

28 Plaintiff cannot rely on “temporal proximity” because the SAC alleges Plaintiff participated
in a “Vote of No Confidence” against Grabschied in December 2019, which is not a “relatively short

1 time” before the alleged adverse employment action in October 2021. (*Morgan v. Regents of Univ.*
2 *of Cal* (2000) 88 Cal.App.4th 52, 69 [adverse action must follow “relatively short time” after
3 protected activity].) Plaintiff appears to concede this argument as he fails to address it in opposition
4 to the demurrer. (See *Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20 [failure to oppose
5 issue raised in demurrer deemed abandonment of the issue]; see also *Sehulster Tunnels/Pre-Con v.*
6 *Traylor Brothers, Inc./Obayashi Corp.* (2003) 111 Cal.App.4th 1328, 1345, fn. 16 [failure to address
7 point is equivalent to a concession].) The demurrer is therefore alternatively sustainable on this
8 ground.

9 Accordingly, the demurrer to the fifth cause of action is SUSTAINED WITHOUT LEAVE TO
10 AMEND.

11
12 **IT IS SO ORDERED.**

13
14 Date: _____

15 Hon. Evette D. Pennypacker
16 Santa Clara Superior Court Judge
17
18
19
20
21
22
23
24
25
26
27
28